

INTA Practice Guides Report

Trademark Cancellations Guide

Australia

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks. This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation. There is no definition of "cancellation" as such, but sections of the relevant legislation create rights to seek cancellation on certain grounds (see Trade Marks Act 1995 (Cth)). Terms such as removal, revocation, and cessation, which may have an effect the same as or similar to cancellation, are also used in the Act.
- Cancellation actions can be filed online at the following URL: <https://www.ipaustralia.gov.au/tools-and-research/forms>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive (That a mark is descriptive is a factor in determining whether a mark lacks distinctiveness (see below).); the mark is misleading and/or deceptive ("An application for the registration of a trade mark must be rejected if...its use would be contrary to law." (Trade Marks Act 1995 (Cth) Section 42(b).) An example would be misleading or deceptive conduct in the course of trade with respect to misdescription or mislabeling in contravention of Section 18 in Schedule 2 to the Competition and Consumer Act 2010 (Cth). "An application for the registration of a trade mark in respect of particular goods or services must be rejected if, because of some connotation that the trade mark or a sign contained in the trade mark has, the use of the trade mark in relation to those goods or services would be likely to deceive or cause confusion." (Trade Marks Act 1995 (Cth) Section 43.) The registration of a trademark may be opposed where "another trade mark had, before the priority date for the registration of the first-mentioned trade mark..., acquired a reputation in Australia; and because of the reputation ... the use of the first-mentioned trade mark would be likely to deceive or cause confusion." (Trade Marks Act 1995 (Cth) Section 60.) While these are grounds for opposition and rejection, registration may be opposed on any ground that warrants rejection (Trade Marks Act 1995 (Cth) Section 57) and cancelled on any ground that warrants opposition (Trade Marks Act 1995 (Cth) Section 88(2)(a)). Further, "(1) subject to subsection (2) and section 89, a prescribed court may, on the application of an aggrieved person or the Registrar, order that the Register be rectified by: (a) cancelling the registration of a trade mark.... (2) An application may be made on any of the following grounds, and on no other grounds: ... (c) because of the circumstances applying at the time when the application for rectification is filed, the use of the trade mark is likely to deceive or cause confusion." (Trade Marks Act 1995 (Cth) Section 88.)); the mark lacks distinctiveness ("An application for the registration of a trade mark must be rejected if

the trade mark is not capable of distinguishing the applicant's goods or services in respect of which the trade mark is sought to be registered...from the goods or services of other persons." (Trade Marks Act 1995 (Cth) Section 41(1).) Such a mark may be opposed on the same ground (Trade Marks Act 1995 (Cth) Section 57) and cancelled on any ground that warrants opposition (Trade Marks Act 1995 (Cth) Section 88(2)(a)). "(1) Subject to subsection (2) and section 89, a prescribed court may, on the application of an aggrieved person or the Registrar, order that the Register be rectified by: (a) cancelling the registration of a trade mark.... (2) An application may be made on any of the following grounds, and on no other grounds: (a) any of the grounds on which the registration of the trade mark could have been opposed under this Act; ... (c) because of the circumstances applying at the time when the application for rectification is filed, the use of the trade mark is likely to deceive or cause confusion." (Trade Marks Act 1995 (Cth) Section 88.));the mark is generic ("[I]f a registered trade mark consists of, or contains, a sign that, after the date of registration of the trade mark, becomes generally accepted within the relevant trade as the sign that describes or is the name of an article, substance or service," the registered owner of the mark containing the sign will not have the exclusive right to use the mark. (Trade Marks Act 1995 (Cth) Section 24.) Consequently, "a prescribed court may, on the application of an aggrieved person or the Registrar, ... order that the Register be rectified by: (a) cancelling the registration of the trade mark...." (Trade Marks Act 1995 (Cth) Section 87(1).) "[I]f: (a) a registered trade mark consists of, or contains, a sign that describes or is the name of: (i) an article or substance that was formerly exploited under a patent; or (ii) a service that was formerly provided as a patented process; and (b) it is at least 2 years since the patent has expired or ceased; and (c) the sign is the only commonly known way to describe or identify the article, substance or service" (Trade Marks Act 1995 (Cth) Section 25(1)), "a prescribed court may, on the application of an aggrieved person or the Registrar, ... order that the Register be rectified by: (a) cancelling the registration of the trade mark...." (Trade Marks Act 1995 (Cth) Section 87(1).));the mark consists of a geographical indication (Under Section 61(1) of the Trade Marks Act 1995, it is possible to oppose registration for a trademark consisting of or containing a geographical indication if the goods for which the mark is registered are similar to those covered by the geographical indication or if the use of the trademark would be likely to deceive or cause confusion. However, for oppositions to trademarks accepted on or before October 23, 2006, there is no requirement under this ground that the goods be similar or that use would be likely to deceive or cause confusion. Under Section 88(2)(a) of the Act, these are also grounds for cancellation of a trademark. That a mark is ordinarily used to indicate geographical origin may also be a factor for consideration in determining whether a mark lacks distinctiveness (see above).);the mark is functional (That a mark is functional is a factor for consideration in determining whether a mark lacks distinctiveness (see above).);the mark is against public policy or principles of morality (Under Section 42 of the Trade Marks Act 1995, an application for a trademark may be rejected on the basis that the trademark contains or consists of scandalous matter or that its use would be contrary to law. Such a mark may be opposed (Trade Marks Act 1995 (Cth) Section 57) and thus cancelled on application under Section 88(2)(a) of the Act.);the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention;the mark includes a badge or emblem of particular public interest (Under Section 39 of the Trade Marks Act 1995, a trademark must be rejected if it contains or consists of the same sign as that prohibited under Regulations 4.15 and under Schedule 2 of the Trade Marks Regulations 1995 or a sign so nearly resembling a prohibited sign as to be likely to be

taken for it. On application, such a mark may be opposed (Trade Marks Act 1995 (Cth) Section 57) and thus cancelled on any ground that warrants opposition under Section 88(2)(a) of the Act.);the mark is used in a misleading and/or deceptive manner;the mark is prohibited in this jurisdiction (Section 42 of the Trade Marks Act 1995 provides grounds for rejecting a trademark application on the basis that the trademark contains or consists of scandalous matter or its use would be contrary to law. On application, such a mark may be opposed (Trade Marks Act 1995 (Cth) Section 57) and, thus, cancelled on any ground that warrants opposition under Section 88(2)(a) of the Act.);the application for or registration of the mark was made in bad faith (Section 62A of the Trade Marks Act 1995 states that "registration of a trade mark may be opposed on the ground that the application was made in bad faith." On application, such a mark may be cancelled under Section 88(2)(a) of the Act.).other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: The Australian Trade Marks Act 1995 does not divide grounds for cancellation/removal into absolute and relative grounds. The Act provides various sections dealing with cancellation/removal as follows: Section 84 provides for voluntary cancellation, of an application or registration, by the trademark owner only, before the Registrar. Sections 84A to 84D cover revocation of a registration. Section 92 provides for cancellation/removal for non-use, of an application or registration, before the Registrar (and is discussed further below). Sections 86 to 88 provide for cancellation/removal of a registration only, before a court; this is offered on various grounds. Section 86 provides for cancellation/removal on the ground that a condition or limitation in the Register has been contravened. Section 87 provides for cancellation/removal where the exclusive rights to the trademark have been lost (Sections 24, 25 (genericisim)). Section 88(2) provides for the remainder of the cancellation/removal grounds being (a) any grounds on which the registration may be opposed (Sections 39, 41-44, 57-62A -- see below); (b) if an amendment of the application was made as a result of fraud, false suggestion, or misrepresentation; (c) because of the circumstances upon filing the trademark is likely to deceive or cause confusion; and (e) an entry on the Register was made as a result of fraud, false suggestion, or misrepresentation (Note: Subsection (d) has been repealed.). Section 181 provides for cancellation of certification marks. Sections 39, 41-44, 57-62A are as follows: Section 39 -- trademark contains certain prohibited signs; Section 41 -- trademark not distinguishing applicant's goods or services; Section 42 -- trademark scandalous or contrary to law; Section 43 -- trademark likely to deceive or cause confusion; Section 44 -- identical or similar trademarks; Section 57 -- registration can be opposed on the same grounds as rejection (Sections 39, 41-44); Section 58 -- applicant not the owner of the trademark; Section 58A -- earlier use of a similar trademark; Section 59 -- no intention to use the trademark; Section 60 -- trademark similar to a trademark that has a reputation in Australia; Section 61 -- trademark containing a false geographical indication; Section 62 -- application is defective; Section 62A -- application made in bad faith.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings:there is an earlier application or registered mark (The trademark is substantially identical with or deceptively similar to a trademark already registered or sought to be registered in respect of similar goods or closely related services. (Trade Marks Act 1995 (Cth) Sections 44, 57, 88(2)(b).));there are earlier use-based rights in an unregistered mark (The registration of a trademark may be opposed on the ground that another trademark had acquired a reputation in Australia before the priority date for

registration of the first-mentioned trademark and, because of that reputation, use of the first-mentioned trademark would be likely to deceive or cause confusion. (Trade Marks Act 1995 (Cth) Section 60.) This may also subsequently be a ground for cancellation on application under Section 88(2)(a) of the Act.;the application for or registration of the mark was made in bad faith (The registration of a trademark may be opposed where the application was made in bad faith. (Trade Marks Act 1995 (Cth) Section 62A.) This may also subsequently be a ground for cancellation on application under Section 88(2)(a.);the mark is notorious or well known (Article 6bis of the Paris Convention) (Australian law does not have a register of well-known marks or incorporate a definition of "well-known mark." However, if, because of the prior reputation of the well-known mark, use of the opposed mark would be likely to deceive or cause confusion, the latter could be opposed and therefore cancelled. (Trade Marks Act 1995 (Cth) Sections 60, 88(2)(a).));the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention) (Under Australian law, "registration of a trade mark may be opposed on the ground that the applicant is not the owner of the trade mark". (Trade Marks Act 1995 (Cth) Section 58.) This ground for opposition is also a ground for cancellation on application. (Trade Marks Act 1995 (Cth) Section 88(2)(a).)).

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- In addition to the absolute or relative grounds listed above and/or the non-use grounds listed below, the following grounds may also be raised in cancellation proceedings: A trademark may be opposed and thus cancelled where it is used as a defensive mark. (Trade Marks Act 1995 (Cth) Sections 187(b), 88(2)(a).) Under Section 189 of the Trade Marks Act 1995, the Registrar may cancel a defensive trademark where the mark is not otherwise registered in the name of the registered owner of the defensive mark. A defensive mark is a mark registered in a category of goods or services for the sole purpose of preventing its use in that category where use will be taken to indicate that there is a connection between the goods or services and the good or services actually marked by the trademark owner. (See Trade Marks Act 1995 (Cth) Section 185.) Registration of defensive marks is generally allowed under Part 17 of the Trade Marks Act.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings. There are two grounds for removal for non-use under Section 92(4)(a) and (b) of the Trade Marks Act 1995. An application removal may be made on either or both of those grounds. Section 92(4)(a) applies where there has been no intention in good faith to use the trademark at the date the application for registration was made and it has not been used at any time before the period of one month ending on the day on which the non-use application is filed. The ground in Section 92(4)(b) applies if the trademark has been registered and at least five years has passed since the filing date of the registered trademark if the application for registration of the mark was filed before February 24, 2019. If the application for registration was filed on or after February 24, 2019, at least three years must have passed since the particulars of the registered trademark were entered into the Register where the trademark was filed. (Trade Marks Act 1995 (Cth) Section 93(2).)
- In relation to cancellation for non-use, "use" is defined as: While "use" is not defined in the Trade Marks Act 1995, Section 17 defines a trademark as a sign used to

distinguish goods dealt with in the course of trade by a person from goods so dealt with by someone else. The meaning of "use" has been considered in case law. The authoritative case *E. & J. Gallo Winery v. Lion Nathan Australia Pty Limited* (2010), 241 CLR 144 ("Gallo"), confirmed the following aspects of Australian trademark law: (1) Trademark use is use in the course of trade as a badge of origin (i.e., to distinguish one trade source of goods from rival trade sources): "As affirmed by Gummow J in *Wingate Marketing Pty Ltd v. Levi Strauss & Co*, 'whilst a trade mark remains on goods, it functions as an indicator of the person who attached or authorised the initial use of the mark'. During the trading period, the trade mark functions as an indicator of the origin of the goods, irrespective of the location of the first sale." (Gallo para. 52.) (2) Trademark law accommodates international distribution of goods, as, despite no direct sale from the American producers to the Australian wholesaler, the High Court held that the trademark was used in the course of trade as Barefoot Cellars sold the wine "in the course of trade" to a trader (wholesale company in Germany) and the wine was traded in the "course of trade" when it was imported into Australia by an Australian wholesaler. "What is critical is that the wine was in the course of trade when [it was] imported into Australia, as it clearly was." (Gallo para. 66.) (3) When considering whether use of the mark is "use in good faith": contriving use to defeat a trade rival's plans may not be genuine, but a use does not cease to be genuine even if it occurs only after an appreciation that a registration may be attacked for non-use; quantum may be an influencing factor, and the High Court left open whether a single act of sale will be sufficient; a relatively small amount of use may be sufficient to constitute "ordinary and genuine" use judged by commercial standards. In Gallo the use was found to be genuine and sufficient. (4) A trademark owner may be able to establish use of the trademark in Australia even if it has no knowledge of that use: "The capacity of a trade mark to distinguish a registered owner's goods from those of others, as required by [Section] 17, does not depend on whether the owner knowingly projects the goods into the Australian market. It depends on the goods being in the course of trade in Australia. Each occasion of trade in Australia, whilst goods sold under the trade mark remain in the course of trade, is a use for the purposes of the Trade Marks Act. A registered owner who has registered a trade mark under the provisions of the Trade Marks Act can be taken, in general terms, to have an intention to use that trade mark on goods in Australia. It is a commonplace of contemporary international trade that prior to consumption goods may be in the course of trade across national boundaries." (Gallo para. 51.)

- The definition of "use" provided above is derived both from statute, regulation or administrative rule and from case law: See above.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor. Under Section 7(3) of the Trade Marks Act 1995, "authorized use" by a person (including the licensee or others using with the proprietor's consent) constitutes use by the proprietor. Under Sections 8(1) and 8(2), to constitute "authorized use," the person must use the trademark under the "control" of the proprietor. Under Sections 8(3) and 8(4), "control" includes where the proprietor exercises financial control over the person's trading activities or where the proprietor exercises quality control over the person's goods or services in relation to which the trademark is used.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of filing of the application for registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: To avoid cancellation under Section 92(4)(a) of the Trade Marks Act 1995, an intention to use the mark must be established on the day on which the

application for registration was filed and it must be shown that there has been use of the mark in Australia at any time up to one month before the non-use application was filed. To avoid allegations of non-use under Section 92(4)(b), if the application for registration of the mark was filed before February 24, 2019, the mark must be used anytime during a continuous five-year period up until one month prior to the date the non-use application was filed. For trademark applications filed on or after February 24, 2019, the mark must be used anytime during a continuous three-year period up until one month prior to the date the non-use application was filed. (Trade Marks Act 1995 (Cth) Sections 92(4)(b), 93(2).) Note: Use does not cease to be in good faith because it is done knowing registration of the mark is vulnerable to cancellation proceedings. (New South Wales Dairy Corporation v. Murray Goulburn Cooperative Co Ltd (No. 1) (1989), 86 ALR 549.)

- There are no consequences to the interruption of use unless use is not resumed for a period of three years or more (and five years has passed since the application for registration of the trademark was filed). (Trade Marks Act 1995 (Cth) Sections 92(4)(b), 93(b).)

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds). An application for cancellation, before the court under Sections 86 - 88, may be based on multiple grounds. An application for voluntary cancellation may only be based on the grounds in Section 84. An application for non-use may only be based on the grounds in Section 92.
- The advantages of filing an action based on multiple grounds are as follows: The facts may satisfy the requirements of some grounds but not others. Filing an action based on multiple grounds increases the chance of success.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered. The court will consider all the grounds raised by the applicant for cancellation, but it need not issue a decision in relation to the other grounds if it decides that one ground is satisfied and the other grounds would not change the outcome.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are not the same in respect of international marks as they are for national marks in that: Regulation 17A.45(2) of the Trade Marks Regulations 1995 lists additional grounds on which the protection of international marks can be ceased.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings except with permission in special circumstances.

III. Forum — A. Forum

- The forum for cancellation proceedings varies depending on the grounds on which the proceedings are brought. Cancellation proceedings based on absolute grounds may be brought before the following court or other judicial tribunal: The Federal Court of Australia is the typical forum. Cancellation proceedings on the ground of non-use are typically heard in the Trade Marks Office but may be transferred to the court in

certain circumstances. As noted above, Australia does not distinguish on absolute/relative grounds. However, cancellation/removal proceedings based on grounds found in Sections 86-88 of the Trade Marks Act 1995 are mainly heard before the Federal Court of Australia. Notice must be given to the Intellectual Property Office of Australia (IP Australia) Hearings Office. Cancellation/removal proceedings can be heard before other prescribed courts (Trade Marks Act 1995 (Cth) Section 190), such as the Supreme Court of a State, the Supreme Court of the Australian Capital Territory, the Supreme Court of the Northern Territory and the Supreme Court of Norfolk Island. It is also possible to bring proceedings in the Federal Circuit Court. Cancellation proceedings based on non-use grounds may be brought before the following administrative body: IP Australia.

- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation.
- For cancellations based on absolute grounds, the following parties have standing: any interested person. Legal interest is required. other: A person must be an “aggrieved person” to seek cancellation on grounds other than non-use and voluntary cancellation. In that, as noted above, Australia does not divide grounds for cancellation/removal by the terms absolute and relative, this relates to all grounds except non-use and voluntary cancellation. For actions based on non-use grounds, any “person” has standing. For voluntary cancellation, only the trademark owner has standing (Section 84 Trade Marks Act 1995 (Cth)).
- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required. other: A person must be an “aggrieved person” to seek cancellation on grounds other than non-use and voluntary cancellation. In that, as noted above, Australia does not divide grounds for cancellation/removal by the terms absolute and relative, this relates to all grounds except non-use and voluntary cancellation. For actions based on non-use grounds, any “person” has standing. For voluntary cancellation, only the trademark owner has standing (Section 84 Trade Marks Act 1995 (Cth)).
- For cancellations based on non-use grounds, the following parties have standing: any person. Legal interest is not required, but only in cancellation proceedings for non-use.
- For cancellations based on grounds other than absolute, relative or non-use grounds, the following parties have standing: other: For voluntary cancellation, only the trademark owner has standing (Section 84 Trade Marks Act 1995 (Cth)).

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a “person” is defined as: both natural and juridical persons.
- For purposes of standing, an “interested person” is defined as: other: While the standing requirement is not defined by reference to the above criteria, one or more of them may be relevant to establishing standing.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation, provided that each party would have been able to commence a separate proceeding with the same question of law or fact (Federal Court Rules 2011 (Cth) rule 9.02).

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant.

V. Representation — A. Qualifications

- The applicant is required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings in the following circumstances: where cancellation proceedings are commenced in the Federal Court and the applicant is a corporation. (Federal Court Rules 2011 (Cth) Rule 4.01(2).) Where the applicant is not a corporation, the Federal Court does not require legal representation; however, representation is generally encouraged. If the Federal Court feels that it is appropriate, it may refer an unrepresented party to a lawyer for legal assistance. (Federal Court Rules 2011 (Cth) Rule 4.12.) Proceedings that take place before the Registrar are less formal and do not require representation.
- The representative must be domestic, i.e., with an office in the jurisdiction. Where proceedings are commenced in the Federal Court, the representative must be domestic. This requires that the representative be a lawyer. (Federal Court Rules 2011 (Cth) Rule 4.01.) A lawyer is "a person enrolled as a legal practitioner of a Federal Court or the Supreme Court of a State or Territory. (Federal Court Act 1976 Section 4 (definition of "lawyer").)
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The representative must be a lawyer (Federal Court Rules 2011 (Cth) Rule 4.01), i.e., "a person enrolled as a legal practitioner of a Federal Court or the Supreme Court of a State or Territory" (Federal Court Act 1976 Section 4 (definition of "lawyer")).

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney need not be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- There is never a deadline for bringing cancellation proceedings, regardless of the grounds for cancellation. A cancellation action may be commenced at any time. In the case of cancellation on the ground of non-use under Section 92(4)(b) of the Trade Marks Act 1995, an action may not be initiated until five years after the filing date of the application for registration of the mark, for trademarks filed before February 24, 2019, and three years ending one month before the day the non-use application is

filed, for trademarks filed on or after February 24, 2019.

VI. Commencement — C. Statute of Limitations

- There is no statute of limitations or acquiescence provision that would prevent cancellation, regardless of the grounds for cancellation.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation. Cancellation proceedings can be brought in respect of part of the goods/services claimed under a mark, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: about one year to proceed to trial in the Federal Court.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: three to six months.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees (if represented); statutory or regulatory fees.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.
- If an application for cancellation is based on multiple grounds, no additional official fees are due. For cancellation proceedings in the Federal Court, no additional official fees are payable for multiple grounds. If, however, non-use cancellation proceedings are also initiated in the Trade Marks Office, such fees would be separate from and additional to any Federal Court fees.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- No documents need be notarized or legalized in cancellation proceedings.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: As previously noted, Australia does not divide grounds for cancellation by the terms "absolute" and "relative." The following applies to all grounds except for voluntary cancellation by the trademark owner or proceedings in the Trade Marks Office to cancel a trademark for non-use: In order to initiate proceedings, the applicant usually must file in the applicable court an application, together with a statement of claim or affidavit and the official fee. The documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: As previously noted, Australia does not divide grounds for cancellation by the terms "absolute" and "relative." The following applies to all grounds except for voluntary cancellation by the trademark owner or proceedings in the Trade Marks Office to cancel a trademark for non-use: In order to initiate proceedings, the

applicant usually must file in the applicable court an application, together with a statement of claim or affidavit and the official fee. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: The applicant must file the relevant application form with the Trade Marks Office and pay the filing fee. The official form for a non-use application and for cessation of protection of a Protected International Trade Mark for non-use is TM00035. The official form for voluntary cancellation is TM00039. A supporting declaration is no longer necessary.

XI. Discovery — A. Interrogatories

- Any party may request that any other party answer written questions, under oath ("Interrogatories"). While Interrogatories may be sought, leave is required. This is a court process only and therefore unavailable for applications before the Trade Marks Office.
- The general rules concerning the timing, number and scope of Interrogatories are as follows: An application for an order for Interrogatories can be made 14 days after the pleadings have closed. A party ordered to answer interrogatories must file written answers alongside an affidavit verifying the answers and serve the documents on each party that has filed a notice of address for service. The answers must directly answer the substance of the Interrogatory unless the party objects on one of the following grounds: the Interrogatory does not relate to an issue raised on the pleadings and in issue; the Interrogatory is vexatious or oppressive; or the answers are privileged. The Court will, in its order, specify the time for compliance. (Federal Court Rules 2011 Part 21.)
- If the requested party fails to provide answers to Interrogatories, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: In matters before the Federal Court, the requesting party must file an application (notice of motion) for an order to make the requested party provide further answers to the interrogatories.
- If the requested party fails to provide answers to Interrogatories, in whole or in part, the consequences are as follows: In matters before the Federal Court, if the deponent of the Interrogatories has made an insufficient answer, the Court may order the deponent to make a further answer verified by affidavit, or, alternatively, order the deponent to attend the Court to be orally examined.
- The grounds on which a party may justify its refusal to respond to Interrogatories, in whole or in part, and the circumstances in which these grounds are applicable are as follows: In matters before the Federal Court, a requested party may object to answering any Interrogatory on the following grounds, but no other: (a) the Interrogatory does not relate to any matter at issue between the parties in the proceedings; (b) the Interrogatory is vexatious or oppressive; or (c) the answers are privileged.
- Answers to Interrogatories may be used as evidence in the action.

XI. Discovery — B. Document Requests

- Any party may request that any other party produce documents in response to written document requests ("Document Requests"). Discovery is usually available in cancellation actions in court. In proceedings before the Trade Marks Office the Registrar can, under Regulation 21.33 of the Trade Marks Regulations 1995, require production of documents. As the regulations do not permit discovery, the Registrar must be satisfied that the document is relevant to the proceedings and that what is being requested does not amount to a de facto request for discovery.

- The general rules concerning the timing, number and scope of Document Requests are: An application for discovery may not be made until 14 days after all respondents have filed a defense or an affidavit in response to the affidavit accompanying the originating application. The usual procedure is that parties will make requests for discovery after completion of their evidence in chief, but in some situations parties may make requests for discovery before evidence. If standard discovery is ordered, the party must give discovery of documents that are directly relevant to the issues raised by the pleadings or in the affidavits that the party is aware of and have been in the party's control. Parties may also make requests for discovery pursuant to categories, which may be more or less extensive than standard discovery. The Court will, in its order, specify the time for compliance.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: by application to the Court for further orders.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the consequences are as follows: If the requested documents are found by the Court to be relevant and producible, it may be a contempt of court to fail to produce the documents. Further, the Court may draw inferences adverse to a party by reason of non-production.
- The grounds on which the requested party may justify its refusal to produce documents in response to Document Requests, in whole or in part, and the circumstances in which these grounds are applicable are as follows: The main grounds are relevance and privilege. Confidentiality does not excuse production, but the Court will make orders safeguarding confidentiality and, for example, restrict access to attorneys. Production of documents being burdensome or oppressive may also justify reduced production.
- Documents obtained in response to Document Requests may be used as evidence in the action.

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions"). Depositions similar to those in the United States are not permitted in Australia. However, a witness put forward by a party will usually be susceptible to cross-examination.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: In opposition proceedings, Section 100(1) of the Trade Marks Act 1995 states that the onus of proof is on the trademark applicant to rebut allegations of non-use. Similarly, the burden of proof can shift to the applicant during the course of opposition or cancellation proceedings in circumstances where there is an allegation that the trademark contains or consists of a false geographical indication under Section 61 of the Trade Marks Act 1995. In these circumstances, Section 61 requires the trademark applicant or registered owner to establish that: "(2)(a) the relevant goods originated in the country, region or locality identified by the geographical indication; or (aa) the sign is not recognised as a geographical indication for the designated goods in the country in which the designated goods originated; or (b) the sign has ceased to be used as a geographical indication for the designated goods in the country in which the designated goods originated; or (c) the applicant, or a predecessor in title of the applicant, used the sign

in good faith in respect of the relevant goods, or applied in good faith for the registration of the trademark in respect of the relevant goods, before: (i) 1 January 1996; or (ii) the day on which the sign was recognized as a geographical indication for the designated goods in their country of origin; whichever is the later; or (d) if the registration of the trademark is being sought in respect of wine or spirits (relevant wine or spirits)—the sign is identical with the name that, on 1 January 1995, was, in the country in which the relevant wine or spirits originated, the customary name of a variety of grapes used in the production of the relevant wine or spirits. (3) (a) although the sign is a geographical indication for the designated goods, it is also a geographical indication for the relevant goods; and (b) the applicant has not used, and does not intend to use, the trademark in relation to the relevant goods in a way that is likely to deceive or confuse members of the public as to the origin of the relevant goods. (4) (a) the sign consists of a word or term that is a geographical indication; and (b) the word or term is a common English word or term; and (c) the applicant has not used, and does not intend to use, the trade mark in relation to the relevant goods in a way that is likely to deceive or confuse members of the public as to the origin of the relevant goods."

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are optional. The Court and the Trade Marks Office proceed by way of oral argument supplemented by written submissions as permitted or required by the particular judge or hearing officer.
- The deadline for submitting written arguments is determined by scheduling order or ruling of the court, other judicial tribunal or administrative body and is: determined by the circumstances of the case.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: The Trade Marks Office Hearing Office, based on fees paid by the cancellation applicant.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: oral evidence, affidavit evidence, tender of documents such as business records, and evidence by way of a view or inspection of property.
- Evidence must be submitted to: the Court or the Trade Marks Office and served on the other party.
- Evidence must be submitted by the following deadline: In the Federal Court, evidence must be submitted in accordance with the timetabling orders provided by the judge.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: The Trade Marks Act 1995 does not divide the grounds of cancellation into absolute and relative grounds (see above regarding absolute grounds).

- Evidence must be submitted to: the Court and served on the other party.
- Evidence must be submitted by the following deadline: In the Federal Court, evidence must be submitted in accordance with the timetabling orders provided by the judge.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: Under Regulation 21.17 of the Trade Marks Regulations 1995, written evidence in a non-use proceeding in the Trade Marks Office must be in the form of a statutory declaration. Where a non-use action is brought as part of litigation proceedings in the Federal Court or referred to the Court, evidence may be submitted in the form of affidavits.
- Evidence must be submitted to: When non-use proceedings are commenced in the Trade Marks Office (as is usually the case), evidence must be submitted to the Trade Marks Office. Where a non-use action is brought as part of litigation proceedings in the Federal Court or referred to the Court, evidence must be filed with the Court and served on the other party.
- Evidence must be submitted by the following deadline: In the Trade Marks Office, there is standard timing for the filing of evidence (subject to applications for an extension of time). Evidence in support of a non-use application must be filed within three months of receiving the notice of an intention to defend; evidence in answer must be filed within three months after the evidence in support; and evidence in reply to the evidence in answer must be filed within two months of receiving the evidence in answer. In the Federal Court, evidence must be submitted in accordance with the timetabling orders provided by the judge.

XV. Evidence — D. To Establish Other Grounds

- The following types of evidence may be submitted to establish grounds other than absolute, relative or non-use grounds: Not applicable.
- Evidence must be submitted to: Not applicable.
- Evidence must be submitted by the following deadline: Not applicable.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based. In cancellation proceedings based on certain grounds, such as where the mark is misleading, the person applying for cancellation will submit proof of use of the mark on which the cancellation is based. In cancellation proceedings based on non-use, the person defending the application will need to submit evidence of his/her/its trademark use in relation to the goods and/or services to which the non-use application relates.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence are the same, regardless of the grounds on which the cancellation proceedings are based. Extension is possible for: In a Federal Court proceeding, an extension of time is given at the discretion of the Court. A court will generally grant an extension of time if the other party consents to it being given. For proceedings in the Trade Marks Office, the period for filing evidence may be extended only if the Registrar is satisfied that the party: (i) has made all reasonable efforts to comply with all of the relevant filing

requirements, and (ii) despite acting promptly and diligently at all times to ensure the filing of the evidence within the period, is unable to do so, or (iii) there are exceptional circumstances that justify the extension (Trade Marks Regulations 9.18, 17A.48T). Consequently, a party making a request to the Registrar for an extension of time should be able to demonstrate a consistent overall pattern of reasonable effort, promptness and diligence in relation to all its endeavors so far to file its evidence within the statutory time frame. It is essential that the party seeking an extension present sufficient information to justify the extension. Parties will need to provide an explanation of why it was not possible to complete the evidence on time. The nature and the significance of the evidence that is being prepared may be relevant to the reasonableness of the actions of the party. Exceptional circumstances include (but are not limited to): a circumstance beyond the control of a party; an error or omission by the Registrar or an employee that prevents a party from complying with a filing requirement; an order of a court or a direction by the Registrar that the opposition be stayed. Parties should not expect that time needed for the purpose of settlement negotiations will be considered under these provisions. Time needed for that purpose should be applied for under the appropriate suspension or cooling-off provisions.

- No official fees are payable to obtain an extension for submitting evidence. In cancellation actions, if an extension is permitted, official fees are not payable for the extension. Official fees are payable for extensions of time to secure acceptance of a trademark application.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: In non-use cancellation proceedings brought in the Trade Marks Office, the applicant for cancellation may file evidence in reply within two months after receiving the trademark owner's evidence in answer. (Trade Marks Regulations 1995 (Cth) Regulations 9.18, 17A.48.) The applicant has no opportunity to submit further evidence beyond this. In Federal Court cancellation proceedings, the Court has discretion to allow further evidence, but there is no inherent right to submit further evidence.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional. For both non-use actions and cancellation actions, evidence in reply is optional. (See Trade Marks Regulations 1995 (Cth) Regulation 9.16 for non-use actions and Federal Court Rules 2011 for cancellation actions.)
- Evidence in reply must be submitted by the following deadline: In Trade Marks Office proceedings, evidence in reply must be submitted within two months from the day the Registrar gives the opponent all the evidence in answer and notifies the trademark owner that all evidence in answer has been filed by the applicant for cancellation. (Trade Marks Regulations 1995 (Cth) Regulations 9.16(6), 17A.48R(6).) In Federal Court, evidence in reply must be submitted by the deadline in the court timetable for the particular case.
- The following extensions of time for the respondent's submissions are available: The extensions of time for filing evidence available to the respondent are the same as those available to the applicant.
- No official fees are payable to obtain extensions. See comment above.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence. For proceedings in the Federal Court, the

petitioner may apply to the court for an order pursuant to Federal Court Rule 16.45 that the respondent provide further and better particulars to its defense or other matter stated in the pleading, if the pleading does not give a party fair notice of the case made against it. Such a court order may be requested in a case management conference or interlocutory application. In practice, however, a petitioner would first raise the request for particulars in correspondence with the respondent.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated by: use as a trademark. A trademark is so used when that use is to distinguish the trader's goods or services from those of another trade. (See, e.g., Trade Marks Act 1995 (Cth) Section 17.) It is not necessary that there be an actual dealing in goods bearing the mark. The offering for sale in Australia of goods under the mark or the use of the mark in advertisements in Australia in the course of trade would also amount to use as a trademark. As to the quantum of use, only a single use as a trademark need be established by the owner. Evidence of only a single act, however, may not be persuasive.
- The following factors are considered when determining whether a mark has been sufficiently used: other: Not applicable
- The respondent can demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence, using the following procedure: For proceedings in the Federal Court, the respondent may apply to the court for an order pursuant to Federal Court Rule 16.45 that the petitioner provide further and better particulars any matter stated in its pleading, if the pleading does not give a party fair notice of the case made against it. Such a court order may be requested in a case management conference or interlocutory application. In practice, however, a respondent would first raise the request for particulars in correspondence with the petitioner.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: Upon request of the petitioner, the court, other judicial tribunal or administrative body may enter a default judgment in favor of the petitioner. An unopposed non-use action application will automatically result in the registration being removed for non-use.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: There are no set criteria for establishing acquired distinctiveness, and whether the defense is made out depends on the circumstances of each case. In general, however, acquired distinctiveness is established if the trademark owner can show that before the filing date there was extensive use of the trademark in relation to the registered goods or services, such that consumers in fact saw the mark as having a branding function (i.e., as an indication of trade source).

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: Where there is opposition to cancellation, non-use can be excused if the Registrar or the Court is satisfied that it is "reasonable" to do so, even if the grounds on which the application was made have been established. (Trade Marks Act 1995 (Cth) Section 101(3).) For example, removal might be refused where the trademark, though unused in the sense required by Section 92, is nonetheless well known because of the retention of some "residual reputation" from earlier use, or from advertising or publicity coming from abroad. In *Paragon Shoes Pty Ltd v. Paragini Distributors (NSW) Pty Ltd* (1988), 13 IPR 323, Woodward J listed three considerations that could be taken into account in exercising the discretion: (1) consideration of the public's interest in the preservation of an established mark; (2) the significance of an unimpeached title to the mark and its continuous use in good faith by the person entitled to it; and (3) if the public interest is not adversely affected and such title and use are shown, then technicalities or defects in legal formalities may be overlooked.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation. Except for legal costs, damages will not usually be at issue in a cancellation action.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings, regardless of the grounds for cancellation.
- The award of attorney fees in cancellation proceedings is discretionary.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: This depends on where the proceedings take place.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application based on any grounds requires the approval of the court, other judicial tribunal or administrative body, regardless of the grounds for cancellation. The requirements vary depending on the tribunal and the stage the proceedings have reached; withdrawal will usually involve a requirement to pay attorney fees. A matter before the Registrar may be withdrawn at any time while the Registrar is still considering it. A matter before the Federal Court may be withdrawn with leave of the Court.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation. Cancellation applications before the Registrar (i.e., voluntary cancellation or cancellation for non-use) may be withdrawn at any time while the Registrar is still considering the application and do not require the other party's consent. The Registrar will notify the other side where the withdrawal is processed and effected. Cancellation proceedings in the Federal Court (i.e., all grounds other than voluntary cancellation) can be discontinued at any time without the other party's

consent, if the Court grants leave. Cancellation proceedings can be discontinued without leave of the Court or the other party's consent at any time before the return date fixed in the originating application (or at any time before the pleadings have closed, if the proceeding is continuing on pleadings). After the return date in the originating application or the close of pleadings, cancellation proceedings can be discontinued with the other party's consent before the Court has delivered judgment.

- When cancellation applications are withdrawn, the cost of the proceedings is borne by: If the application is withdrawn with the consent of the other party, the costs may be borne by either party or in any agreed division of costs. Otherwise, costs are borne by the party who withdraws.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: Appeals against a cancellation decision made by the Trade Marks Office can be made to the Federal Court within 21 days of the decision date.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: A decision of the Trade Marks Office (in relation to non-use cancellation) can be appealed to the Federal Court (single judge). A judgment or order of a single judge of the Federal Court may be appealed only to the Full Court of the Federal Court with leave of the Federal Court (Trade Marks Act 1995 (Cth) Section 195(2)).

XIX. Appeals — C. New Evidence

- New evidence may not be submitted on appeal from a Federal Court decision for cancellation. However, note that an appeal of a decision of the Trade Marks Office (in relation to non-use cancellation) to the Federal Court is considered a de novo hearing and can involve new evidence (see below).

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: For an application in the Federal Court, the fee for a corporation is AUD 4,930 and for any other case, the fee is AUD 1,695.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision can include a monetary award against the losing party even if the earlier decision did not include a monetary award. The approximate award, in local currency, would be: There is no set approximate award, and the amount awarded (e.g., by way of court order for payment of damages or an account of profits) depends on the circumstances of the case. For example, the amount of damages awarded depends on the extent to which the winning party has established that it suffered loss by reason of the losing party's conduct. Orders for payment of a percentage of attorney fees are usually made against the unsuccessful party at each stage of the court process.

XIX. Appeals — E. Scope

- An appeal is limited to points of law, except in the case of an appeal to the Federal

Court from a non-use decision in the Trade Marks Office, which would proceed by rehearing the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: A judgment or order of a single judge of the Federal Court may be appealed only to the Full Court of the Federal Court with leave of the Federal Court. (Trade Marks Act 1995 (Cth) Section 195(2).) A judgment or order of the Full Court of the Federal Court may be appealed only to the High Court of Australia with leave of the High Court of Australia. (Trade Marks Act 1995 (Cth) Section 195(3).) Details regarding the deadlines and fees for further appeal are as follows: The costs of filing for a notice of appeal in the Full Federal Court are AUD 12,325 for corporations and AUD 5,695 for all other entities. The costs of filing a special leave application and a notice of appeal in the High Court are each AUD 18,345 for publicly listed companies, AUD 12,220 for other corporations, AUD 4,050 for individual and other persons, and AUD 1,350 for persons suffering financial hardship.
- In lieu of an appeal, the following procedure is available: For decisions of the Registrar regarding non-use, the Trade Marks Act 1995 specifically provides for application for review by the Administrative Appeals Tribunal, and review of any decision of an administrative nature is available under the Administrative Decisions (Judicial Review) Act 1977 (AD(JR) Act).

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, regardless of the grounds on which the cancellation proceedings were brought, if an applicant is successful in obtaining cancellation, the legal consequence is that: the mark is considered as having been validly registered until the date of the decision to cancel the mark. After cancellation, the owner no longer has the exclusive right to use or to authorize the use of the trademark and no longer has the right to seek relief under the Trade Marks Act if the trademark is infringed.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: If the assignment is recorded on the register, the assignee becomes the registered owner of the trademark (Trade Marks Act 1995 (Cth) Section 110), and as the owner, the assignee would have exclusive right to use or to authorize the use of the trademark and the right to seek relief for infringement of the trademark. If the trademark is cancelled after the assignment takes effect, the assignee would lose the exclusive right to use or authorize use of the mark and would also lose the right to seek relief for infringement.
- The consequences for past licenses if a mark is cancelled are: A license granted to allow use or exploitation of the trademark would be void from the date of the cancellation. However, if the license agreement contains other clauses not relevant to the cancelled trademark, they would be unaffected, and in such case the clauses relating to the cancelled mark may be severed, such that the other terms of the

license agreement continue to operate. Cancellation has the effect that the registered owner loses the exclusive right to use or authorize use of the mark. As the owner loses such exclusive right, after cancellation occurs, no license is required for other parties to engage in use of the mark. Therefore, after cancellation the licensee can continue to use the mark although there is no license agreement in force.

- The consequences for past contracts if a mark is cancelled are: If there was a contract (or clauses in a contract) whereby a party agreed not to use the cancelled trademark, or marks substantially identical with or deceptively similar to the cancelled mark, then that contract (or the relevant clause) would be void from the date of the cancellation. Examples of such contractual clauses include coexistence agreements and agreements to settle court proceedings for trademark infringement.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The following party has the responsibility to notify the Office: The owner of the trademark must notify the Trade Marks Office of any Federal Court decision. The deadline to make the notification is: the time specified in the court order.
- The consequences of failing to meet the deadline to notify the Trademark Office are: The action will not be implemented until advised to the Trade Marks Office.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: by either of the parties to the action; by a third party.
- There are no time limits for refile following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a sign used, or intended to be used, in relation to goods or services dealt with or provided in the course of trade by members of an association to distinguish those goods or services from goods or services so dealt with or provided by persons who are not members of the association. (Trade Marks Act 1995 (Cth) Section 162.)
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of collective marks on absolute, relative, non-use or other grounds, as follows: Section 163 of the Trade Marks Act 1995 sets out those provisions of the Act that do not apply to collective marks. The main provision relating to cancellation is: Section 41 (trademark not distinguishing applicant's goods or services) applies in relation to a collective trademark as if a reference to the applicant were a reference to the members of the association that applied for registration of the collective trademark. (Trade Marks Act 1995 (Cth) Section 163(3).)

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a sign used or intended to be used to distinguish goods or services: (a) dealt with or provided in the course of trade; and (b) certified by a person (owner of the certification trade mark), or by another person approved by that person, in relation to quality, accuracy, or some other characteristic, including (in the case of goods) origin, material or mode of manufacture; from other goods or services dealt with or provided

in the course of trade but not so certified. (Trade Marks Act 1995 (Cth) Section 169.) The goods or services certified may be those of any person, including the owner of the certification mark or any person approved by the owner for the purpose of certifying goods or services. (Note to Section 169.)

- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of certification marks on absolute, relative, non-use or other grounds, as follows: Section 170 of the Trade Marks Act 1995 sets out those provisions of the Act that do not apply to certification marks.

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